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Executive Order

WHEREAS the Convention concluded between the United States and His Britannic Majesty in respect of Canada, for the suppression of smuggling operations along the boundary between the United States and the Dominion of Canada, and for other purposes, signed on June 6, 1924, and proclaimed on July 17, 1925, reads as follows: [illegible]

ARTICLE I

The High Contracting Parties agree that the appropriate officers of the Governments of the United States of America and of Canada respectively shall be required to furnish upon request to duly authorized officers of the other Government, information concerning clearances of vessels or the transportation of cargoes, shipments or loads of articles across the international boundary when the importation of the cargo carried or of articles transported by land is subject to the payment of duties; also to furnish information respecting clearances of vessels to any ports when there is ground to suspect that the owners or persons in possession of the cargo intend to smuggle it into the territory of the United States or of Canada.

ARTICLE II

The High Contracting Parties agree that clearance from the United States or from Canada shall be denied to any vessel carrying cargo consisting of articles the importation of which into the territory of the United States or of Canada, as the case may be, is prohibited, when it is evident from the tonnage, size and general character of the vessel, or the length of the voyage and the perils or conditions of navigation attendant upon it, that the vessel will be unable to carry its cargo to the destination proposed in the application for clearance.

ARTICLE III

Each of the High Contracting Parties agrees with the other that property of all kinds in its possession which, having been stolen and brought into the territory of the United States or of Canada, is seized by its customs authorities, shall, when the owners are nationals of the other country, be returned to such owners, subject to satisfactory proof of such ownership and the absence of any collusion, and subject moreover to payment of the expenses of the seizure and detention and to the abandonment of any claims by the owners against the customs, or the customs officers, warehousemen or agents, for compensation or damages for the seizure, detention, warehousing or keeping of the property.

ARTICLE IV

The High Contracting Parties reciprocally agree to exchange information concerning the names and activities of all persons known or suspected to be engaged in violation of the narcotic laws of the United States or of Canada, respectively.

ARTICLE V

It is agreed that the customs and other administrative officials of the respective Governments of the United States and of Canada shall upon request be directed to attend as witnesses and to produce such available records and files or certified copies thereof as may be considered essential to the trial of civil or criminal cases, and as may be produced compatibly with the public interest.

The cost of transcripts of records, depositions, certificates, and letters rogatory in civil or criminal cases, and the cost of first-class transportation both ways, maintenance and other proper expenses involved in the attendance of such witnesses shall be paid by the nation requesting their attendance at the

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time of their discharge by the court from further attendance at such trial. Letters rogatory and commissions shall be executed with all possible despatch and copies of official records or documents shall be certified promptly by the appropriate officials in accordance with the provisions of the laws of the respective countries.

ARTICLE VI

The following offenses are added to the list of offenses numbered 1 to 3 in Article I of the Treaty concluded between the United States and Great Britain on May 18, 1908, with reference to reciprocal rights for the United States and Canada in the matters of conveyance of prisoners and wrecking and salvage, that is to say:

4. Offenses against the narcotic laws of the respective Governments.

ARTICLE VII

No penalty or forfeiture under the laws of the United States shall be applicable or attached to alcoholic liquors or to vessels, vehicles or persons by reason of the carriage of such liquors when they are in transit under guard by Canadian authorities through the territorial waters of the United States to Skagway, Alaska, and thence by the shortest route, via the White Pass and Yukon Railway, upwards of twenty miles to Canadian territory, and such transit shall be as now provided by law with respect to the transit of alcoholic liquors through the Panama Canal or on the Panama Railroad, provided that such liquors shall be kept under seal continuously while the vessel or vehicle on which they are carried remains within the United States, its territories or possessions, and that no part of such liquors shall at any time or place be unladen within the United States, its territories or possessions.

ARTICLE VIII

This Convention shall be ratified, and the ratifications shall be exchanged at Washington as soon as possible. The Convention shall come into effect at the expiration of ten days from the date of the exchange of ratifications, and it shall remain in force for one year. If upon the expiration of one year after the Convention shall have been in force no notice is given by either party of a desire to terminate the same, it shall continue in force until thirty days after either party shall have given notice to the other of a desire to terminate the Convention.

IN WITNESS WHEREOF, the respective Plenipotentiaries have signed the present Convention in duplicate and have thereunto affixed their seals.

DONE at the city of Washington this sixth day of June, one thousand nine hundred and twenty-four.

WHEREAS it is desirable that uniform regulations should be established by the Government of the United States and the Government of the Dominion of Canada to give effect to the provisions of the treaty;

AND WHEREAS, the following regulations have been agreed upon by representatives of the two Governments and have been submitted to me for approval on the part of the United States:

ARTICLE I

Section 1. The officers authorized to furnish, request and receive information as provided in Article I of the Convention shall be as follows:—For the Dominion of Canada, the Deputy Minister of Customs and Excise, the Chief, Customs-Excise Preventive Service and Collectors of Customs and Excise; for the United States of America, Consuls, Collectors of Customs and United States District Attorneys. In addition, other officers may be designated and authorized, for Canada, by the Minister of Customs and Excise, and for the United States by the Secretary of the Treasury or the Attorney General.

Section 2. Advance or immediate information respecting the clearance of vessels to any port shall be so furnished where there is reasonable ground to suspect that the owners or persons in possession of the cargo intend to smuggle or illegally introduce it into Canada or the United States. It shall be the duty of any such officer of either government having reasonable ground to suspect an intent to smuggle or illegally introduce any merchandise into the other country, immediately to inform by telegraph or telephone, at the expense of the receiving government, the appropriate officer of such government, as provided in Section 1. Arrangements may be made to furnish such information to a specially-named officer when it is deemed advisable to do so.

Section 3. For the purpose of Section 2, reasonable ground to suspect an intent to smuggle or unlawfully to introduce goods or merchandise shall be deemed to exist not only when the officers of the country from which the goods are being conveyed suspect that unlawful operations are contemplated but also when the Minister of Customs and Excise, for Canada, or the Secretary of the Treasury, for the United States, or the duly authorized representative of either, certifies, one to the other, that he has reasonable grounds for believing that such vessel or the owner or possessor of its cargo or of such goods or merchandise is engaged in or about to engage in such unlawful operations.

Section 4. All information furnished under the provisions of this article of the Convention shall be for official use only and may be designated as confidential by the officer furnishing it. The source of all information furnished as confidential shall not be disclosed without the consent of the officer who furnished it and any officer who violates the provisions of this section will be subject to severe disciplinary action.

Article II

Collectors of Customs and Excise of Canada and Collectors of Customs of the United States will refuse to clear any vessel in accordance with the provisions of Article II of the Convention. Lists of articles, the importation of which is prohibited and to which it is desired that the provisions of Article II shall be applied, will be exchanged between the Minister of Customs and Excise of Canada and the Secretary of the Treasury of the United States.

Article III

Section 1. A national of the United States or of Canada desiring to make claim under the provisions of Article III of the Convention shall file a petition with the Minister of Customs and Excise or the Secretary of the Treasury, as the case may be, setting out the facts and making request for the return of the property.

Section 2. The claimant must produce evidence of his ownership and of the absence of collusion on his part in the theft of the property.

Section 3. Upon the submission of satisfactory evidence, the return of the property will be authorized by the appropriate official, provided the claimant pays to the Collector of Customs or Collector or other proper officer of Customs and Excise, as the case may be, all expenses incurred in the seizure and detention of the property and files in writing a waiver and release of all possible claims for compensation and damages incident to the seizure and detention of the property against the Government and any and all Government officers involved.

Section 4. Customs officials of the United States or Customs and Excise officials of Canada will give assistance to the nationals of the other Government by permitting the inspection by such nationals of property under seizure; provided the Customs or Customs and Excise officials are satisfied that such requests for inspection are made in good faith. When such stolen property is identified, such nationals will be furnished, so far as known, with the names and description of persons from whom the property was seized and other persons who have had possession of such property subsequent to the theft thereof.

ARTICLE IV

Section 1. The information to be exchanged under Article IV of the Convention shall be the name, and, where available, the description, Bertillon measurements, fingerprints, photograph, and record, or other relevant information regarding the following persons:

(a) Every person known or suspected to be engaged or about to engage in smuggling or unlawfully importing narcotic drugs from the United States to Canada, or *vice versa.*

(b) Every person arrested for smuggling or unlawfully importing or bringing any narcotic drugs into the United States from Canada, or *vice versa.*

(c) Every person arrested in the United States or in Canada for a serious violation of the narcotic laws of either government, if there is reasonable ground for believing that such person has unlawfully imported or brought in narcotic drugs.

Section 2. This information shall be exchanged between the Head, Narcotic Division, Prohibition Unit, Washington, D. C., and the Chief, Narcotic Division, Department of Health, Ottawa, Canada.

Section 3. If prompt information is necessary to enable the officers of either government to apprehend a person in the act of smuggling or unlawfully importing narcotic drugs, it may be communicated to the appropriate officers of the other government by mail, or, if necessary, by telegraph or telephone, at the expense of the government receiving the information. A report containing the substance of the communication shall be mailed to the officers named in Section 2.

ARTICLE V

Section 1. In case documentary evidence or the testimony of any officer or employee of the United States is desired in Canada under the provision of Article V of the Convention, request therefor will be made by the appropriate officer of the Canadian Department of Justice through the Consul General of the United States at Ottawa, to the Secretary of State, who will transmit the request to the head of the Department or independent organization of the United States Government having such evidence or employing such official. After consideration thereof, the head of the Department or independent organization will make the appropriate order in the premises.

Section 2. In case documentary evidence or the testimony of any official of Canada is desired in the United States under the provisions of Article V of the Convention, request therefor will be made by the proper officer of the Department of Justice to the Secretary of State, who will transmit it through the Consul General of the United States at Ottawa to the Minister of the Canadian Government under whom the documentary evidence is to be found or the officer or employee is employed. After consideration thereof the Minister will make the appropriate order in the premises.

Section 3. Whenever any officer or employee of the United States is required to go to Canada under the provisions of Article V of the Convention, and whenever any Canadian officer or employee is likewise required to go to the United States, transportation from his official station to the place to which he is required to go, or sufficient money to pay the same, shall be furnished to him by or on behalf of the Government requesting his attendance before he leaves his official station. All other expenses required by Article V to be paid by the requesting nation shall be paid in full before he departs from the place at which his testimony was required.

ARTICLE VI

Section 1. If, under Article VI of the Convention, a narcotic agent or other officer of either the United States or Canada desires to convey a prisoner charged with an offense against the narcotic laws of his own Government across the territory of the other Government, as provided by the Treaty of May 18, 1908 (35 U. S. Stat. Part 2, p. 2035), he may, in having the warrant or process endorsed, or backed, by a judge, magistrate or justice of the peace, or in obtaining the authority of the Secretary of State or of the Minister of Justice, as the case may be, at the expense of his own government, call upon the nearest United States Attorney or the Department of Justice of Canada for advice and assistance.

Section 2. A United States Attorney or the Department of Justice of Canada, so called upon by a narcotic agent or other officer of either Government, will give advice and render assistance in accordance with the law and the Treaty of May 18, 1908.

Article VII

Section 1. When a shipment of liquors is to be made to Canadian Territory under Article VII of the Convention, a full description of the packages, and contents thereof, will be furnished by Canadian authorities to United States customs authorities at Skagway, Alaska. A second copy thereof will be delivered to and retained by the master of the vessel having such liquors on board for transportation.

Section 2. Said shipment, consisting of the packages as listed and described in the document furnished as required by Section 1, will be locked securely in a separate and safe compartment on the vessel transporting the same from the Canadian port to Skagway, Alaska, and the owners and master of the vessel, under penalties of the law of Canada and of the United States, will be responsible for the safe delivery of said liquors to Skagway, Alaska.

Section 3. Before leaving Canada, said compartment will be placed under Canadian and United States customs seals, and remain under the two seals continuously until the vessel arrives at its destination at Skagway.

Section 4. The shipment will be accompanied on the vessel by one or more guards representing Canadian authorities.

Section 5. After arrival of the vessel at Skagway, Alaska, the seals on the compartment will be broken in the presence of an officer of the United States customs service, the Canadian customs officer at Skagway and the master of the vessel or his representative. The packages of liquor will be checked and will be removed from the vessel under supervision of United States and Canadian customs officers to a car of the White Pass and Yukon Railway. Such car will then be securely locked and placed under United States and Canadian customs seals. A Canadian guard or guards will accompany the car and shipment until it arrives in Canadian territory. Upon arrival at the point of exit from the United States the car will be examined by a United States customs officer and, if the seals are found intact, such officer shall certify to that effect upon the carrier's manifest, allow the car to proceed into Canadian territory, and return to the Deputy Collector at Skagway the mail copy of the carrier's manifest as a certificate of exportation. If the seals are not found intact, the customs officers of the two governments shall prepare a joint report stating the condition in which the shipment arrived at such point of exit, and the shipment shall then be allowed to proceed to destination.

Section 6. If, at Skagway, or at such point of exit, the shipment is not found intact when checked, the authorities of both Governments will cooperate in proceedings to apprehend and prosecute the person or persons responsible for the loss or diversion of the liquor.

Now, Therefore, I, Calvin Coolidge, President of the United States of America, considering it expedient and necessary for the enforcement of the provisions of the said Convention of June 6, 1924, that uniform regulations for that purpose be adopted by the two Governments, do hereby approve the foregoing regulations to govern acts of officers of the United States.

CALVIN COOLIDGE

The White House,
September 19, 1925.

GOVERNMENT PRINTING OFFICE

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